

HOUSE BILL 2405

By Scarbrough

AN ACT to amend Tennessee Code Annotated, Title 8,
Chapter 27, relative to health insurance for public
safety employees.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 8-27-210, is amended by deleting the
section and substituting instead:

(a) As used in this section:

(1) "Catastrophic injury" means a permanent impairment or disability:

(A) From one (1) or more of the following:

(i) Paraplegia or permanent paralysis of both legs and the
lower part of the body resulting from traumatic injury or disease to
the spinal cord or brain;

(ii) Legal blindness;

(iii) Loss or loss of use of two (2) or more limbs from any
service-connected cause;

(iv) An acquired injury to the brain or spinal cord, or both,
caused by an external physical force;

(v) Second- or third-degree burns; or

(vi) Injuries to the skin that involve the likelihood of
permanent or protracted disfigurement; or

(B) That is of a nature and severity that would qualify an
employee to receive social security disability insurance (SSDI) benefits or
supplemental security income (SSI); and

(2) "State law enforcement officer" means a full-time, salaried employee of this state who is a commissioned member of the department of safety, an agent of the Tennessee bureau of investigation, a commissioned employee of the wildlife resources agency engaged in law enforcement activities on a day-to-day basis, a commissioned member of the alcoholic beverage commission who is engaged in law enforcement activities on a day-to-day basis, or a correctional officer vested with the powers of a law enforcement officer by the commissioner of correction.

(b) The state insurance committee shall, in approving a health insurance plan that covers state law enforcement officers, offer or continue to provide health insurance benefits to the surviving spouse or spouse, as applicable, and eligible dependent children, including an unborn child, of a state law enforcement officer who, on or after January 1, 2020, is killed or suffers a catastrophic injury in the line of duty. The officer's employer shall pay the entire premium of the officer's health insurance plan for the officer, if injured, officer's spouse or surviving spouse, as applicable, and for each eligible dependent child of the officer.

(c) The criteria for determination of eligibility of dependent children is the same as the criteria established by the state insurance committee for state employees and their families.

(d) If the spouse or surviving spouse, as applicable, is or becomes eligible for insurance coverage through a subsequent marriage, then the extension of coverage authorized in this section must be terminated on the first day of the following month. The state insurance committee may establish specific conditions for extensions in instances where preexisting conditions may apply during the transfer of coverage.

(e) If insurance coverage under the state plan is terminated for the spouse or surviving spouse, as applicable, pursuant to subsection (d), but the spouse or surviving spouse is unable to secure through the new coverage insurance coverage for the eligible dependent children, the eligible dependent children may continue coverage under this section; provided, that the eligible dependent children continue to meet all dependent eligibility requirements.

SECTION 2. Tennessee Code Annotated, Section 8-27-404(a)(2), is amended by deleting "law enforcement officers, firefighters," and substituting instead "firefighters".

SECTION 3. Tennessee Code Annotated, Title 8, Chapter 27, Part 4, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Catastrophic injury" has the same meaning as defined in § 8-27-210;

and

(2) "Local law enforcement officer" means a full-time, salaried employee of a political subdivision who is a sheriff, sheriff's deputy, police officer, chief of police, or other law enforcement officer whose primary responsibility is the prevention and detection of crime and apprehension of offenders, or who is a correctional officer with the political subdivision.

(b) If a political subdivision offers health insurance benefits to local law enforcement officers, then the political subdivision shall offer or continue to provide health insurance benefits to the spouse or surviving spouse, as applicable, and eligible dependent children, including an unborn child, of a local law enforcement officer who, on or after January 1, 2020, is killed or suffers a catastrophic injury in the line of duty. The political subdivision shall pay the entire premium of the officer's health insurance plan for

the officer, if injured, officer's spouse or surviving spouse, as applicable, and for each eligible dependent child of the officer.

(c) A political subdivision that offers or provides health insurance benefits in accordance with subsection (b) shall notify the commissioner of finance and administration.

(d) This state shall reimburse a political subdivision that provides health insurance benefits in accordance with this section in an amount equal to that portion of health insurance premiums or expenses for COBRA coverage for benefits for which the political subdivision is responsible.

SECTION 4. This act takes effect July 1, 2026, the public welfare requiring it.